

imposes duties on the capital of limited liability companies) on the statement of the amount which is to form the nominal share capital of the merger company.

Provisions
as to Cunard
(Insurance)
Agreement
Act, 1930.

21 & 22
Geo. 5. c. 2.

3.—(1) After the formation of the merger company the Board of Trade may, with the consent of the Treasury, enter into such agreements with the Cunard Steam Ship Company Limited and the merger company as may, in the opinion of the Board, be necessary to secure that, when the interest of the Cunard Steam Ship Company Limited in the first vessel mentioned in the Cunard (Insurance) Agreement Act, 1930, has been transferred to the merger company, the benefits and obligations conferred and imposed on the Cunard Steam Ship Company Limited by and under the said Act shall (subject to any necessary modifications) also be transferred to the merger company.

(2) The provisions of section three of the said Act shall apply in relation to any such agreement as aforesaid as they apply in relation to the principal agreement as defined in that Act, and references in the other provisions of that Act to the principal agreement shall be construed as including references to the principal agreement as supplemented or modified by any such agreement as aforesaid.

Short title.

4. This Act may be cited as the North Atlantic Shipping Act, 1934.

CHAPTER 11.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army and the Air Force. [26th April 1934.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom

and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of one hundred and forty-nine thousand five hundred, including those to be employed at the depots in the United Kingdom for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions, other than Aden :

And whereas under the Air Force (Constitution) Act, 7 & 8 Geo. 5. 1917, His Majesty is entitled to raise and maintain the air force, and it is judged necessary that the whole number of such force should consist of thirty-one thousand, including those employed as aforesaid, but exclusive of the numbers serving as aforesaid : c. 51.

And whereas it is also judged necessary for the safety of the United Kingdom and the defence of the possessions of this realm that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or be sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny, or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and thirty-four on the following days :—

- (a) In Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, on the thirtieth day of April; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Short title. **1.** This Act may be cited as the Army and Air Force (Annual) Act, 1934.

Army Act
and Air
Force Act
to be in
force for
specified
times. **2.**—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament, that is to say :—

- (a) Within Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, one thousand nine hundred and thirty-four, to the thirtieth day of April, one thousand nine hundred and thirty-five, both inclusive; and
- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, one thousand nine hundred and thirty-four, to the thirty-first day of July, one thousand nine hundred and thirty-five, both inclusive.

(2) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

(3) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or Air Force Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act or the Air Force Act the prices specified in the First Schedule to this Act. Prices in respect of billeting.

AMENDMENTS OF THE ARMY AND AIR FORCE ACTS.

PART I.

AMENDMENTS OF THE ARMY ACT APPLICABLE ALSO (SUBJECT TO EXCEPTIONS AND MODIFICATIONS) TO THE AIR FORCE ACT.

4. At the end of section one hundred and eighty-eight of the Army Act (which relates to the application of that Act to persons on board ships) the following subsection shall be added:— Amendment of Army Act, s. 188.

“(2) Where the officer commanding the troops on board a ship holds an authority empowering him during the voyage to convene a court-martial for the trial of any person under his command who is subject to military law and to confirm the finding and sentence of a court-martial convened for the trial of any such person as aforesaid, or conferring on him either of those powers, that authority shall, in relation to any such person as aforesaid, have effect as if it had been issued at the place where that person embarked on board the said ship by an officer or person qualified under this Act to issue such an authority at that place.”

5. The amendments specified in the second column of the Second Schedule to this Act, being drafting amendments or amendments of a minor character, shall be made in the sections of the Army Act specified in the first column of the said Schedule. Minor amendments of Army Act.

6. References in the foregoing sections of this Part of this Act (including the Second Schedule to this Act) to the Army Act shall be deemed to include references to the Air Force Act, and the provisions of the said sections and Schedule shall, in their application to the Air Force Act, have effect subject to any express exception specified in the said Schedule, to any of the general modifications set out in Part I Application of Part I to Air Force Act.

PART I.
—cont.

of the Second Schedule to the Air Force (Constitution) Act, 1917, which apply, and to the following special modification, namely, that for the expression “the troops” in section four of this Act there shall be substituted the expression “the air-force personnel.”

PART II.

AMENDMENT OF THE ARMY ACT.

Relations
between
military
forces and
Indian Air
Force.

7. After section one hundred and eighty-four A of the Army Act, there shall be inserted the following section—

“184B. When a body of the regular, reserve or auxiliary forces and a body of an air force raised in India are serving together under such conditions as may be prescribed by regulations made by the Army Council and the Governor-General of India, then, if it is so provided by the regulations, but subject to any exceptions or limitations specified therein, a member of either body shall, in relation to the other body—

(a) be treated for the purposes of command and discipline, and for the purposes of the provisions of this Act relating to superior officers; and

(b) have for those purposes all such powers (other than powers of punishment),

as if he were a member of that other body holding relative rank.

For the purposes of this section, the relative rank of members of different forces shall be such as may be provided by regulations made as aforesaid”.

PART III.

AMENDMENTS OF THE AIR FORCE ACT.

Minor
amend-
ments of Air
Force Act.

8. The amendments specified in the second column of the Third Schedule to this Act, being drafting amendments or amendments of a minor character, shall be made in the sections of the Air Force Act specified in the first column of the said Schedule.

SCHEDULES.

FIRST SCHEDULE.

Section 3.

PRICES IN RESPECT OF BILLETING.

Accommodation to be provided.	Maximum price.
Lodging and attendance for a soldier where meals furnished.	Tenpence a night for the first soldier and eightpence a night for each additional soldier.
Breakfast as specified in Part I. of the Second Schedule to the Army Act.	Sevenpence each.
Dinner as so specified - - - -	Tenpence.
Supper as so specified - - - -	Fourpence.
Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Tenpence a night for the first soldier and eightpence a night for each additional soldier.
Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw a day for each horse.	Two shillings and threepence a day.
Stable room without forage - - -	Sixpence a day.
Lodging and attendance for an officer -	Three shillings a night.

Note.—An officer shall pay for his food.

In the application of this Schedule to the Air Force, references to the Air Force Act and to an airman shall be substituted for references to the Army Act and to a soldier.

Section 5.

SECOND SCHEDULE.

DRAFTING AND MINOR AMENDMENTS OF THE ARMY ACT.

1 Section.	2 Amendments to be made.
S. 56	- In subsection (5), the word " other " shall be omitted.
S. 91	- In the proviso to subsection (1), for the words " the mental hospital of " in both places where those words occur, and for the words " mental hospital districts " there shall be substituted respectively the words " the public mental hospital for " and " public mental hospital districts."
	In subsection (3), the words " or Northern Ireland " in the last place where those words occur, shall be omitted.
	In subsection (4), for the words " a warrant granted by " two justices under section ten of the Lunacy " (Ireland) Act, 1867 " there shall be substituted the words " an urgency order made under section " twenty of the Mental Treatment Act (Northern " Ireland), 1932 ".
S. 163	- In paragraph (b) of subsection (1), for the words " or " the Army Council, or of the Admiralty or of the Air " Council " there shall be substituted the words " or " on behalf of the Army Council, the Admiralty, or " the Air Council ".
	The preceding amendment does not apply in the case of the Air Force Act.
	In paragraph (b) of subsection (1), after the words " the commanding officer " there shall be inserted the words " or the officer having the custody of the records."
S. 190	- In paragraph (4), the words " subject to the exceptions in this Act mentioned " shall be omitted.
	For paragraph (27) there shall be substituted the following paragraph :—
	" (27) The expression ' governor ' in its application to a colony means the officer, however styled, who is for the time being administering the government of the colony."

THIRD SCHEDULE.

Section 8.

DRAFTING AND MINOR AMENDMENTS OF THE AIR FORCE ACT.

1 Section.	2 Amendments to be made.
S. 156 -	In paragraph (a) of subsection (9), for the word "military" there shall be substituted the word "air-force".
S. 163 -	In paragraph (b) of subsection (1), for the words "or the Air Council, or the Army Council, or of the Admiralty" there shall be substituted the words "or on behalf of the Air Council, the Admiralty or the Army Council".
S. 175 -	In paragraph (1), for the words "Royal Warrant" for regulating the pay and promotion of the "regular air force" there shall be substituted the words "order of His Majesty defining that term".

CHAPTER 12.

An Act to extend the period during which guarantees may respectively be given and remain in force under the Overseas Trade Acts, 1920 to 1930. [26th April 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. The period within which new guarantees may be given under the Overseas Trade Acts, 1920 to 1930, in connection with export transactions shall be extended so as to expire on the thirty-first day of March, nineteen hundred and forty, and the period during which guarantees so given (including renewed guarantees) may remain in force shall be extended so as to expire on the thirty-first day of March, nineteen hundred and fifty.

Extension of periods during which guarantees under Overseas Trade Acts, 1920 to 1930, may be given and remain in force.